



HUMAN RESOURCES POLICY MANUAL

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The Santa Rosa County Human Resources Manual is published and maintained as a guide for supervisors and managers in order that human resources matters can be handled more consistently and equitably. The manual is designed to be the primary reference document for communicating and interpreting human resources policies, programs, and procedures. Separate memoranda or pamphlets with respect to the operation or administration of human resources-related functions and programs may be distributed to augment the provisions of this manual.

Additionally, the manual will be updated periodically to reflect changes in policy and changes in the law. However, no provisions in this manual, or in separate memoranda or pamphlets are, or should be construed as, an implied or expressed contract or guarantee of employment or contractual obligation of the Santa Rosa County. The term “Constitutional Officer” shall mean Clerk of Court, Property Appraiser, Tax Collector, and Supervisor of Elections.

CHAPTER I. Recruitment, Employment, and Promotion

SECTION I. Equal Opportunity Employment

Santa Rosa County prohibits unlawful discrimination, harassment, and retaliation, and strives to ensure that all aspects of County employment are free of such unlawful conduct, and that County employment is equally available to all persons regardless of race, sex, color, national origin, religion, age, disability, marital status, genetic information, veteran/military status, and any other characteristic or status protected by applicable law.

SECTION II. Recruitment, Employment, and Promotion

All employees shall be hired in accordance with policies established by the Board of County Commissioners or County Administrator. It shall be the policy of the County to recruit, select, and promote employees on the basis of the needs of the County and the employees’ qualifications and relevant knowledge, skills, and abilities. No classified position shall be filled unless a vacancy has been posted in accordance with procedures set forth. The County may waive processes set forth herein under circumstances identified herein, including special recruitment efforts, but may not delegate this authority. Veterans Preference shall be given to eligible veterans at all stages of the recruitment and selection process, in accordance with Florida Statutes.

SECTION III. Applications

A. All applications shall be made on forms prescribed by The Human Resources Department. Such forms may require information covering education, experience, references, and other information, which is deemed pertinent. All applications shall be signed, and the truth of all statements contained therein certified by signature. Applications must be filed with the Human Resources Department within the time limit specified in the announcement. If sufficient applications are not received during the time the announcement is open, the announcement may be amended to reflect a later closing date, or a new announcement may be issued. The amendment or new announcement will be posted on the Human Resources website and advertised as appropriate.

SECTION IV. Eligibility

A. Age requirement. Except for students, applicants for regular positions shall not be less than seventeen (17) years of age.

1. No applicant shall have their name kept on an employment register whose age does not conform to the requirements fixed by these rules.
2. Applicants for student appointment must have reached their sixteenth (16) birthday.

B. Qualification requirements. All applicants must meet the minimum qualifications prescribed in the job description for the position.

C. Medical examinations. In accordance with the Americans with Disabilities Act, a hiring authority shall not conduct a medical examination or make inquiries of an applicant as to whether such applicant has a disability or as to the nature or severity of such disability. A hiring authority may require a medical examination after an offer of employment has been made and prior to commencement of employment and may condition an offer of employment on the results of such examination if:

1. All entering employees may be subjected to such an examination regardless of any disability.
2. Information obtained regarding the medical condition or history of the applicant shall be collected and maintained in the Human Resources Department, on separate forms and in separate medical files and shall be confidential.
 - a. Supervisors and managers may be informed regarding any necessary restriction on the work or duties of the employee and necessary accommodations.
 - b. First aid and safety personnel may be informed, when appropriate, if a disability might require emergency treatment.
 - c. An individual shall not pose a direct threat to the health or safety of other individuals in the workplace.

SECTION V. Qualifications

The screening criteria to establish a register of eligible for any class will consist of one or more of the following:

A. Education, Training and Experience. The majority of positions have an education, training, and experience requirement. The applicant's education, experience, and/or training will be evaluated against the qualification requirements as reflected in the job description.

B. Examinations. Testing may be administered in addition to other criteria. The test score will be used strictly as a “pass” or “fail” option.

C. Performance tests. Some positions will require the applicants to pass a performance test, e.g., typing, calculator, or motor vehicle operations. Failure to pass the performance test will result in disqualification of the applicant.

D. Oral tests. Very few positions will require the use of an oral examination, but when approved by the Human Resources Department, an oral test may be used to supplement any of the tests listed above. When required, an oral examination will include a personal interview conducted by an impartial board of two (2) or more members who shall be known to be interested in the improvement of public administration and in the selection of efficient government personnel, and at least one (1) of whom shall be technically familiar with the character of work in position for which the examination is held.

SECTION VI. Conduct of Examinations

A. The Human Resources Department shall arrange for the administration of all examinations, which may include the appointment of special examiners, monitors, and the use of public buildings and equipment for conducting the examination.

B. All applicants for the same position shall be afforded uniform and equal treatment in all phases of the examination procedure.

C. All applicants who are required to take an examination will be notified of the date, time, and place to report for the examination. Failure to report or less than a minimum passing score will be cause for disqualification.

D. When any applicant is found using or attempting to use deception, fraud, or any extraneous, forbidden, or unfair source of information, memoranda, pamphlets, books, or notes to assist them in answering the questions or doing the assigned work, they shall be excused from the examination and barred from future examinations except by special approval of the Human Resources Department.

E. Examinations shall be held by the Human Resources Department. The date of examinations will be publicized within the employment announcement. Applicants shall be notified of testing times by means of email, mail, or in person at the time of application. The Human Resources Department shall have the right to postpone or cancel an examination(s) because of inadequate number of applications, nonattendance of special examiners, change in personnel requirements or for other sufficient cause. The Human Resources Department shall attempt to notify applicants of any postponement or cancellations.

SECTION VII. Disqualification of applicants

The Human Resources Department will refuse to examine an applicant, or after examination will disqualify such applicant, or remove the applicants name from a register or requisition, or refuse to certify an eligible on a register if the applicant:

A. Has failed to comply with all requirements or is found to lack any of the preliminary requirements established for application.

B. Has failed to properly complete the prescribed application or failed to submit it within the prescribed time limit.

C. Has made a false statement of any material fact or practiced or attempted to practice, any deception or fraud in their application, in their examination, or in securing their eligibility for appointment. Any false statement knowingly made by the applicant, in their application, or connived by them in any letter or reference or other data which may accompany same, shall be regarded as good cause for refusing them an examination, or for discharge from any position to which they may have been appointed.

D. Has used, or attempted to use, political pressure or bribery to secure an advantage in the examination or appointment or promotion to a position.

E. Has directly or indirectly obtained information regarding examination to which, as an applicant, they were not entitled.

F. Has been convicted of a felony which directly relates to the position of employment sought. Additionally, any applicants for a position of employment involving Law Enforcement shall be disqualified if they have been convicted of a felony or a misdemeanor involving moral turpitude.

G. After selection, failed to report for, or to qualify by medical examination, administered by or under the supervision of the appointed physician.

H. Has an unsatisfactory background or employment history as evidenced by reference check of such nature as to demonstrate unsuitability for employment.

I. Has received a discharge from the Armed Forces under other than honorable conditions, except upon special consideration and action of the Human Resources Department.

J. Is within the first twelve months of retirement and is receiving retirement pay under the **Florida Retirement System's Pension Plan** or is within the first twelve months of receiving a roll-over/distribution from the **Florida Retirement System's Investment Plan**.

K. Has taken part in the compilation, administration, or correction of the examination.

L. Has otherwise violated the provisions of these rules and regulations.

SECTION VIII. Establishment of Registers

A. Opening Registers. Registers will be open to all competitors who meet the minimum requirements of the job specifications, as outlined in the job description. The Human Resources Department will establish two types of registers: Employment and Promotional. Employment Registers will be open to the public and all who meet the minimum qualifications of the job description. Promotional Registers shall be restricted to all current employees working in county departments. An employee who is currently serving a promotional probationary period may compete on employment and promotional registers. Applicants eligible for reinstatement will remain on registers for one (1) year. All registers shall remain in force for one (1) year from the date established. An applicant added to an *open continuous* register will begin their one-year register period from the date merged (to the register). In an effort to add names and/or to attract the best-qualified applicants, registers may be determined to be nonfunctional and reopened on a short-term basis (minimum of seven (7) days) or on a continuous basis.

B. Locating Eligible. The Human Resources Department will be fully responsible for locating eligible, determining eligibility, evaluating applicants, and certifying eligible to appointing authorities. Job announcements will include the title, pay grade (\$) amount, source of employment applications, and closing date of the announcement. The closing date will be no less than seven (7) calendar days from the date of announcement. Notices will be posted on bulletin boards until the day after the closing date. No application will be accepted after the closing date has passed. At a minimum, announcements will be given county wide publicity. Additionally, announcements for Employment Registers may be published in local newspapers of general circulation.

C. Veteran's Preference. Individuals eligible for Veteran's Preference according to FS 295.07, shall receive preference at every step through-out the hiring process.

D. It shall be considered a promotion when an employee advances from one grade to another grade with increased duties and responsibilities and for which a higher pay is prescribed.

SECTION IX. Maintenance of Registers

A. Registers. The names of persons eligible for appointment to positions in the classified service shall be arranged on two (2) registers: Employment and Promotional.

B. Combining Registers. When opening an existing register to merge names, current eligibles may remain on the existing register, or they may opt to recompet.

When an expired register is reestablished, current register eligibles will be required to recompet.

C. Conversion or Transfer to a lower-Class Register. The names of any eligible may at any time, upon written request, be placed upon the eligible register for a lower classification requiring qualifications of the same general character. They shall be ranked thereon according to the final earned average attained on the application in which the eligible originally competed.

D. Removal of Names from Registers. Names will be removed from eligible registers for any of the following reasons:

1. Failure to meet any qualification criteria outlined in Section III or failure to meet the examination standards outlined in Section VI.
2. Refusal of offer when a name is certified on a requisition, or when appointment is refused, under conditions previously specified by the eligible as acceptable.
3. Appointments from such registers to fill a regular position.
4. Upon the statement of the eligible that they are not willing to accept appointment. Such statement of unwillingness may be restricted to a limited period of time, to geographical location, or to positions involving unusual conditions of employment. The name of the eligible shall then be treated as not available and shall be passed over in certification to fill a vacancy under the conditions specified as though such name did not appear on the register. Any eligible may renew their eligibility by providing new statement as to the times, place or other conditions under which appointment will be acceptable.
5. Failure to respond, within the time specified in the notice, to any inquiry of the Human Resources Department or any Department Director or their designee if satisfactory evidence is not furnished justifying such failure to respond.
6. Failure to report for interview when properly notified.
7. Failure to report for medical examination.
8. Failure to report to duty after accepting an appointment.
9. On evidence that the eligible cannot be located by postal authorities.
10. Death of an eligible.
11. On written rejection for three (3) different positions in the same class or on the first written rejection by the Department Director or their designee where the position exists.
12. On written rejection by a Department Director or their designee for reasons determined by the Human Resources Department as valid.
13. Upon transfer to a lower register, an eligible name will be removed from the higher register.
14. The names of persons on promotional registers who separate from the service shall automatically be removed from such registers. However, if such persons separate in

good standing, may upon application to the Human Resources Department, have their name placed on the appropriate employment register according to their rating on the promotional register exclusive of seniority or efficiency credits (if applicable). The applications of any persons to have their name placed on the employment register in accordance with this provision shall be subject to the one (1) year validity period of the register establishment date.

15. When referral would be counter to an approved nepotism policy.

E. Promotional Registers. All persons performing work in a paid Santa Rosa County department position for a minimum of eighteen (18) consecutive weeks, at twenty (20) or more hours, are eligible to compete for internal openings for competitive selection to fill a vacancy.

Former employees, upon reentering the classified service, may request that their names be returned to promotional registers upon which they held status at the time of separation. These requests for reinstatement must be submitted within six (6) months of reentry into the classified service.

F. Reinstatement. Any former permanent status employee who has resigned in good standing from Santa Rosa County, may request reinstatement to the appropriate eligible register for the previously served class or classes of employment. Such requests shall be made in writing and subject to the approval of the Director of Human Resources. On approval, the name of the former employee shall be placed on the appropriate list. Any former employee who meets the requirements of Chapter 295, Florida Statutes, shall be reinstated to the previous position or an equivalent position.

G. Employment Registers. Eligibility for placement on an Employment Register will be attained through:

1. Open recruitment. Applicants who have applied through open recruitment and have met minimum qualifications, will be placed on the employment register.
2. Employees separated during Probation. Probationary employees who separated in good standing may have their names returned to the register of the position held at separation. The score attained on their original entrance examination will be used. This request must be submitted within one (1) year of the date of separation and be accompanied by an updated employment application.

H. Duration of Registers. The Promotional and Entry Level Registers shall remain in force for one (1) year from date of establishment. The Department Director or their designee may request to have a register re-opened prior to its one-year expiration, if they submit the request to Human Resources in writing.

I. Qualifications for the various positions in the classified service other than those approved by the Human Resources Department shall be considered null and void. Restrictions on the employment of relatives will be governed by the provisions of Chapter 112.3135, Florida

Statutes.

SECTION X. Methods of Filling Vacancies

Methods of Filling Vacancies in the classified service may be by transfer, demotion, or certification from promotional, or employment registers.

A. Request for certification (requisition). Vacancies in the classified service shall be anticipated sufficiently in advance to permit the Human Resources Department to determine who may be eligible for appointment, or if necessary, to establish a register of eligible applicants. If a new classification is necessary, sufficient time must be allowed to prepare class specifications and get the position classified and the pay plan amended by the Human Resources Department. Requisitions may be placed orally or in writing.

B. Processing Registers. Upon receipt of a requisition, the Human Resources Department shall, unless the vacancy is to be filled by transfer or demotion, process registers and refer eligible for the vacancy.

Combinations of the registers may be used in order to provide enough eligible for certification.

C. Special Qualifications. Eligible shall be certified in strict order of standing except where special requirements for a particular position have been specified by the Department Director or designee. Certification may be limited to persons meeting the requirement specified.

D. Number of Names to be Certified. The Department Director or designee shall make selection for appointment to a classified position from the referrals by the Human Resources Department from the appropriate registers. When a Department Director or designee requisitions a list from which to make an appointment, the Human Resources Department shall certify and refer the names of persons from the appropriate register who are eligible to accept appointment. Appointing Authorities should make tentative selection within 30 workdays. A requisition may be voided if selection is not made within 60 days.

E. Promotional Registers. Consists of persons who currently work in a county department a minimum of eighteen weeks and meet minimum qualifications to fill a vacancy.

SECTION XI. Incomplete Registers

When the total number of names available for filling any vacancy is fewer than five (5), the Department Director or designee may cancel the requisition and request that a new register be established, and in the interim, may fill the vacancy by provisional or temporary appointment in accordance with Section XVI (Extraordinary Appointments).

SECTION XII. Appointment Procedures

After notification is received of the selection from the eligible referred, the Human Resources Department shall make arrangements for the eligible to undergo a pre-employment screening. The

selected eligible shall be allowed to report for duty on the effective date stated on form VII (personnel action form), however, if the eligible fails to return any required forms within fifteen (15) days of their effective date, then the appointment will be terminated.

SECTION XIII. Certification during Leaves of Absence

Employees on leave of absence from the county service shall not be certified during such leave from any eligible register which their names appear, unless available for immediate appointment.

SECTION XIV. Certification to Replace Provisional Appointee

Upon the establishment of an appropriate register for a class position which is being filled by provisional appointment, the Human Resources Department shall thereon process the register in the usual manner and the Department Director or designee shall immediately make the appointment. If no appointment is to be made, the Provisional appointee shall be terminated within ten (10) days from the date the eligible register was established.

SECTION XV. Probationary Period

The probationary period shall be regarded as an integral part of the examination process. It shall be utilized for closely observing the employee's work, for securing the most effective adjustment of the new employee whose performance, after proper guidance and training, does not meet the required work standards.

A. All new and rehired employees work on a probationary basis for the first 365 calendar days after their date of hire. Employees who are promoted or transferred within Santa Rosa County must complete a secondary probationary period of the same length with each reassignment to a new position.

B. At the satisfactory completion of the probation period of one (1) year, the regular appointment or status shall begin with the date of the original appointment.

An employee may be placed in an extended probationary period due to a disciplinary action, documented work performance deficiencies, or an extended period of time on the job missed. This period may not exceed 90 days past the initial twelve (12) month probationary period. Written notice must be provided to Human Resources and approved by the County Administrator or designee prior to the end of the initial twelve (12) month period.

C. An employee may be separated without cause from the service during the probationary period, or may be demoted during probation, without right of appeal at any time.

D. An employee who is currently serving their probation for promotion may compete on Employment and Promotional Registers.

SECTION XVI. Extraordinary Appointments

A. Provisional Appointment. If in the opinion of the County there are urgent reasons for filling a position and no appropriate register is available, the County may nominate a person to fill the position pending examination and establishment of a register. Each appointee under consideration under provisions of this rule, shall file an application with the Human Resources Department. Only if such person's qualifications are certified by the Human Resources Department as meeting the minimum requirements for the position, such persons may be provisionally appointed. No provisional appointment shall be made until the position has been classified and minimum qualifications established therefore in accordance with this rule. No provisional appointment may continue for more than six (6) months or ten (10) days (whichever occurs first) after an appropriate register has been established for the class of position. No provisional appointment may continue in the event the appointee fails to submit the application or to report for examination when notified or fails to qualify on the examination announced after such provisional appointment is authorized.

B. Emergency Appointment. An emergency appointment as used herein means an unforeseen condition which is likely to cause loss of life or damage to public property, such as hurricanes, tornadoes, floods, or other disasters which require the employment of extra personnel without delay. The filling of normal vacancies or replacement of regular personnel shall not be classified as an emergency.

When an emergency arises which requires the immediate services of one or more persons, and it is not possible to secure such persons immediately from appropriate registers, the County may appoint such person or persons without regard to other provisions of these regulations governing appointments. Such appointments shall be reported to the Human Resources Department by the next business day. Such appointments shall be limited to the period of the emergency and shall not entitle the appointee to any rights or benefits under the provisions of the Act or these rules and regulations.

C. Temporary Appointment. Upon receipt of a request to fill positions of a temporary or transitory nature, the Human Resources Department shall process the appropriate register for names of applicants who are willing to accept temporary employment. If there is no appropriate register, or the number of eligible who are willing to accept temporary employment is not sufficient to allow the Department Director or designee a choice in making such temporary appointment, the Department Director or designee may fill the temporary position without regard to normal certification procedures, in which case such temporary appointment shall immediately be reported to the Human Resources Department. All temporary appointments shall be limited to a maximum period of six (6) months duration without a break in service of more than thirty (30) days unless the Human Resources Department is convinced that the stoppage of public business or unusual or extraordinary cases, authorize an extension of the temporary appointment for a specified period of time beyond the maximum duration. No credit shall be allowed for services rendered under a temporary appointment nor shall any benefits accrue except that a temporary employee may be paid for holidays occurring during the period of such temporary service. The acceptance or refusal of such temporary appointment shall not jeopardize the rights

of any eligible for regular employment. A maximum of forty-five (45) days' work experience shall be credible for each period of temporary employment.

D. Temporary Promotion (plus rates for higher skills). When the County determines that conditions exist and an employee is temporarily required to regularly serve in and accept the responsibilities for the work in a higher class of position, such employee shall receive the entrance rate of that class or a minimum of two (2%) percent above their present rate, whichever is higher, while so assigned, subject to the prior approval of the County. To qualify for the higher rate of pay such temporary assignment to a higher class of position shall be regular and continuous in character for at least thirty (30) days before eligibility is established and is limited to a period not to exceed six (6) months.

1. Requests shall be made in writing by the relevant department to the Human Resources Department stating reasons why the assignment is necessary, the approximate length of time involved, and that the employee has shown potential ability to perform the duties of the higher class of position.
2. Such temporary increase, when approved, shall not affect the employee's eligibility for performance-based pay increases in the grade of his regular position. If the employee is entitled to a salary increase it shall become effective as of the date the employee returns to their regular position.

E. Student Appointment. Two classes of student employment are authorized. Secondary school and college/university students. A student employee is defined as temporary in nature, or one who works under a cooperative agreement sponsored by the school, who is currently enrolled in an accredited school for the purpose of obtaining academic credit towards a high school diploma, vocational certificate, or college degree. Enrollment in a minimum of three (3) semester hours, or verification of acceptance in an accredited college institution shall be necessary to qualify for employment as a college student. Enrollment towards a vocational certificate will be required to qualify for employment as a Vo-Tech student. Full time enrollment in secondary school will be required for High School students. Correspondence or GED classes will generally not satisfy enrollment criteria.

1. No employee in this category may be appointed to any position, which may be occupied by persons under normal appointment procedures. No student shall be permitted to work over 1400 hours in any fiscal twelve (12) month period and no person may be employed as a student worker for more than three (3) years during high school or vocational school, and a maximum of four (4) years during college. Upon initial appointment, the student must be enrolled or accepted in an accredited college institution. While students may be "off" for the summer or for one semester/quarter and remain employed as student workers, such absences cannot exceed one semester/quarter in a year. The student must terminate their student worker appointment upon graduation or completion of the educational goal or, if completing of a project for the employing division, within three months of graduation or completion of the educational goal. Students are required to complete an online Student application and present proof of enrollment or acceptance to the Human Resources

Department prior to start of employment. After employed, students are required provide proof of enrollment within three (3) weeks of a new semester. Students who graduate, leave school, or who fail to meet enrollment requirements shall lose eligibility for student employment. Student employees who lose student employment eligibility shall be immediately terminated from student employment.

2. Appointing Authorities will decide the rate of pay for students, providing that pay will be at least equal to the federal minimum wage. No credit shall be allowed for services rendered under a student appointment nor shall any benefits accrue except that a student employee, if required to work on a holiday, shall be compensated at a ratio of one- and one-half hours for each hour worked.

F. Limited Term Appointment. Defined as appointments to positions created under grant agreements whereby persons appointed under this procedure are assigned to work for a county. Persons appointed under this procedure shall be informed as to the terms and conditions of the grant relating to their employment and shall agree to terminate either upon expiration of the grant, termination of their appointment as planned in the grant, or as deemed appropriate by the County.

1. Benefits and pay shall be given in compliance with the provisions of the grant.
2. The creation, classification, and pay grade assigned to new positions shall be as follows:

Initial requests for new positions shall be first submitted to the Human Resources Department to determine that the position is properly classified and has been assigned the correct pay grade. In the event that the requested position is not part of the classified plan, the Human Resources Department shall develop the job description.

3. The Human Resources Department shall also review requests for all positions that are to be funded within the County system to determine if they constitute maintenance of effort as defined by Federal regulations or whether the positions would in any way infringe upon the rights of regular county employees.

If a position established under a grant is absorbed into the regular service, the employee occupying such position may receive a regular appointment without further qualifying in the required evaluation procedure if the initial appointment was on a competitive basis.

4. Limited term appointments shall be selected in the following manner:
 - a. The department responsible for administering the grant shall in turn direct their referrals to the County for interview and final selection.
 - b. Those applicants who have been selected as limited term appointments shall then be referred directly to the Human Resources Department where they will complete an application for the position being sought and required supplemental forms. The

Human Resources Department shall determine whether the applicant meets minimum qualifications for the position and to advise the department responsible for administering the grant of their findings.

G. Substitute Appointment. A substitute appointment is an appointment to replace a regular employee who is absent from work for a period of short duration not to exceed three (3) weeks. It is not to be confused with the temporary appointment which may be used for the same or other purposes but for a longer period of time. Such substitute appointment shall be made, from lists of eligible applicants prepared in advance by the Human Resources Department and furnished to the Department Director concerned. No service credit shall be allowed for time rendered under a substitute appointment nor shall any benefits accrue except that a substitute, if required to work on a holiday, shall be compensated at a ratio of one- and one-half (1 ½) hours for each hour worked. All such appointments shall be reported to the Human Resources Department. The acceptance or refusal of substitute employment shall not jeopardize the right of any eligible for regular appointment. A maximum of forty-five (45) days' work experience shall be creditable for each period of substitute employment. To qualify for a subsequent period of employment the appointee must have had a different employer.

H. Seasonal Appointment. Seasonal appointments are defined as appointments to established positions which require the services of an appointee only for a certain part of the year on a recurring basis. Such appointments shall be made in the same manner as provided for regular appointments to year-round positions except both the appointing authority and the applicant agree to termination at the end of the season without prejudice of re-employment. Employees serving in seasonal positions shall be entitled to the same benefits and privileges as year-round employees except that they shall receive service credits for benefits, such as completion of probation, sick and annual leave, performance-based pay increases, longevity pay, etc., during periods of employment only. Seasonal employees may request reinstatement to the appropriate eligible register for the previously served class or classes of employment within the one (1) year period, in accordance with the Human Resources Policy.

I. Trainee Appointment. These appointments shall provide for the establishment of training programs for persons with minimal qualifications, but with potential for development. Such programs shall be monitored by the Human Resources Department to prevent abuse of the merit system by limiting the number of and duration for such appointments. These programs will provide for the regular appointment to established positions upon satisfactory completion of the training period and will not be subject to competitive registers. If given a regular appointment, the employee shall receive credit for services rendered under the trainee appointment. All trainee appointments shall be subject to approval by the County Administrator, Constitutional Officer, or their designee. Trainees will begin their probationary periods on the date of appointment to trainee status. There are three (3) types of Trainee Appointments:

1. **Disadvantaged Groups:** This appointment will provide career development opportunities for such groups as handicapped persons, returning veterans, older workers, or other minority groups as may be designated by the Human Resources Department.

2. Regular Trainee: This appointment will afford appointing authorities the opportunity to attract and train employees when labor shortages prevent the establishment of a viable register. Typically, a viable register will consist of at least five (5) names.

3. Co-op Student: This appointment is to provide degree-seeking students with valuable work experience through the practical application of academic skills and broadening of work knowledge. This structured learning opportunity offers professional experience within a public sector work environment, and the opportunity to transition into the County workforce at the completion of a trainee program.

To request approval, appointing authorities will submit a training plan for consideration. At a minimum the training plan will include the standards for acceptance into the training program, duration of the training period, subject matter content that must be mastered, and the criteria that will constitute successful completion.

J. Disability/Worker's Compensation. Appointing authorities may fill vacant positions with former or current employees who have a disability that must be accommodated. Appointing authorities may also place Worker's Compensation claimants.

- a. Placement will be outside normal certification procedures.
- b. Positions may be filled on a temporary or regular basis.
- c. Worker's Compensation claimant's may be placed in vacant positions within the system.
- d. Appointee's will have their skilled abilities evaluated by a Taxing Authority appointed Occupational Specialist. Potential appointee's failing to report for evaluation will be subject to termination and/or loss of benefits.
- e. Appointing Authorities will make reasonable accommodations to allow the appointee to perform in the new position.
- f. Appointee's failing to report to their new position will be subject to termination and/or loss of benefits.
- g. When an employee is regularly reassigned under this section, they will remain as close as possible to their same hourly wage, in the new grade. Under no circumstances will employees be paid an hourly wage higher than the highest wage allowed in the new position grade, unless required by Federal, State, or Civil Law.

SECTION XVII. Transfers

A. In-Class (Lateral) Transfers. An in-class transfer is defined as reassigning a regular employee from one position to another in the identical classification within the classified service.

The transfer will require the approval of the receiving Department or Constitutional Officer and will require the consent of the employee. The losing Department or Constitutional Officer will be provided a two (2) week notice. If the County is the recipient, it shall immediately notify the Human Resources Department.

B. In-Grade Transfers or Lower Grade Demotions. Any employee in the classified service with regular status may apply for transfer to a position in a different job classification within the same or lower pay grade, within the system. The losing authority will be provided a two (2) week notice. Transfers must have the approval of the receiving authority. The Human Resources Department will screen transfer requests to determine if the applicant meets the minimum qualifications for the requested position. The transfer shall not change the employee's anniversary date.

Transfers to a lower classification shall be considered demotions and the provisions of the Human Resources Policy governing demotions shall apply.

C. Administrative Transfers. An administrative transfer is one which is initiated by the County and does not result in a pay reduction or increase. In the event of an administrative transfer request, the employee shall be informed of the request and the circumstances surrounding it. The administrative transfer may be due to reorganization, changes in departmental responsibilities, or the result of a disciplinary action.

CHAPTER II. Performance Evaluation and Efficiency Standards

SECTION I. Efficiency Standards. All employees in the classified and unclassified service of the County shall be evaluated at least annually. Annual performance evaluations must be submitted to the Human Resources Department at the close of the fiscal year.

SECTION II. Performance Evaluation (service rating). The County shall establish and administer a system for rating the work performance of employees. The performance appraisal process provides a means for discussing, planning, and reviewing the performance of each employee. Performance appraisals influence salaries, promotions, and transfers, and it is critical that supervisors are objective in conducting performance reviews and in assigning overall performance ratings.

- A. New employees within their first year will have a six (6) month and nine (9) month evaluation. After which, they will fall into the Annual-Evaluation cycle.
- B. At the end of six (6) months and nine (9) months of the probationary period, an evaluation of the performance of the probationary employee shall be submitted to the Human Resources Department. The annual evaluation must also be submitted if the employee has passed nine (9) months of their probationary period when it comes due.
- C. Any County employee who has been promoted or moved laterally into a new position will have a six (6) month and nine (9) month evaluation, and then move back into the

Annual-Evaluation cycle.

D. When an employee is promoted or moved laterally, an evaluation must be completed for their past performance within their old job description.

During the first nine (9) months of the promoted employee's probationary period, if the annual evaluation comes due, the department must return the evaluation form marked "Not Observed" (NOB). The annual evaluation must be completed and submitted if the promoted employee has passed nine (9) months of their probationary period when it comes due.

Additional evaluations may be submitted on employees at any time to document superior or sub-standard performance.

E. Each employee shall be evaluated by their immediate supervisor and the documented evaluation reviewed by the Department Director or designee. Before each evaluation is certified, the immediate supervisor shall discuss it with the employee.

F. The evaluation shall be dated before being sent to the Human Resources Department.

G. The date of certification will be the date the completed form is signed by the Department Director. Each employee will be given a copy of their completed evaluation form.

H. The overall performance rating shall be used as a guide for career development, determining the need for additional training or addressing employee strengths & deficiencies.

I. The performance rating shall be retained as a part of the employee's permanent record.

CHAPTER III. Compensation Policy

SECTION I. Purpose. The Compensation Policy shall establish a fair and equitable pay plan applicable to all positions. Amended: 3/13/2025

SECTION II. Pay Plan. The Pay Plan is a compensation hierarchy comprised of separate pay grades. Each pay grade has a pay range with a clearly defined minimum and maximum salary. Every County position is assigned to a specific pay grade within the Pay Plan.

SECTION III. Components of the Pay Plan. The pay for each employee is the product of the salary structure and the components of the plan that shall be used to adjust employee pay. Each component of the plan is subject to funding approval on an annual basis by the Board of County Commissioners as part of the budget approval process.

A. The cost-of-living adjustment is the component that is used to ensure that the salary structures are adjusted to reflect changes based on economic indicators. When applicable and when funds are available and approved by the Board of County Commissioners, an increase or modification, may be applied to the salaries of all eligible employees, with the exception of those salaries set by state or local legislation.

B. The County has established a performance-based pay system. This pay system provides for pay adjustments linked to the employee's annual performance evaluation. The performance-based pay system is approved and may be changed at any time by the County Commissioners. The current performance-based pay system is included in the Manual as Appendix A.

An employee's current salary shall not exceed the maximum of the assigned pay grade.

C. Exceptional circumstances adjustments may be asserted by a department director that an employee's salary requires adjustment based on one of the following reasons:

1. Pay adjustment due to added higher level duties – job audit by Human Resources validates the addition of significantly higher-level duties, responsibilities, qualifications (e.g., certifications, licenses, education), etc. Human Resources may recommend up to ten (10%) percent base pay increase for approval by the County Administrator, Constitutional Officer, or their designee.
2. Pay inconsistency/inequities up to fifteen (15%) percent as determined by Human Resources and approved by the County Administrator, Constitutional Officer, or their designee; and
3. Employee retention purposes if job knowledge, skills, performance, and difficulty in recruiting an equally qualified replacement is validated by Human Resources, a recommendation of up to twenty-five (25%) percent may be forwarded to the County Administrator, Constitutional Officer, or their designee for approval.

If approved, the respective department is responsible for funding the budget modification. If funds are not in the budget, the department director shall seek approval of the Budget Director.

Exceptional circumstances adjustment requests, together with the required documentation, must be submitted to Human Resources. Human Resources shall review a request for any exceptional circumstances adjustment for compliance with this policy, before forwarding the request along with his or her recommendation to the County Administrator, Constitutional Officer, or their designee.

D. When a promotion is made from one classification to a higher classification, the employee shall receive an increase in salary to be determined by the Department Director or their designee but shall be a minimum of two percent.

E. An employee who voluntarily demotes to a lower classification will have their pay adjusted to the new pay grade, based upon the employees' years of service. Adjustments based on years of service will not allow an employee to realize an increase in pay or to remain at the same rate of pay.

F. An employee who is involuntarily demoted from a higher classification to a lower classification within a lower pay grade will undergo a corresponding reduction in salary. The

determination of the rate of pay adjustment will be made by the Department Director in collaboration with Human Resources. Subsequently, the request, along with recommendations, will be forwarded to the County Administrator, Constitutional Officer, or their designee for approval. Amended: 3/13/2025

G. An employee who accepts, or is given, a lateral transfer will assume the new positions at his/her same rate of pay.

H. When the Department Director or their designee requests to downgrade a position, "Save-Pay" provision will ensure the incumbent employee does not experience a reduction in pay.

I. When an employee is on any type of leave without pay or Worker's Compensation, and no annual performance-based pay increase shall be granted. Performance-based pay increases will be granted when the employee returns from leave, provided that one half of the work hours required have been fulfilled for that fiscal year. When less than one half of the required hours have been worked, the Department Director or their designee may, and with the approval of the Human Resources Department, request in writing that the employee be granted the performance-based pay increase.

SECTION IV. Supplemental, Incentive, and Disaster Emergency Pay

Amended: 3/13/2025

Call-In Pay

Off-duty nonexempt employees called out to work on weekends or after hours will receive a minimum of two hours of pay. Any additional time worked beyond the initial two hours will be compensated at their hourly rate, in compliance with the overtime regulations outlined in the Fair Labor Standards Act.

Parks and Recreation Call-In Time

Parks and Recreation employees who are called in to work on weekends will receive a minimum of four hours of pay. Any hours worked beyond this minimum will be compensated in accordance with the overtime regulations stipulated by the Fair Labor Standards Act.

On-Call Pay

Nonexempt employees required to work on-call shall be paid two hours of paid time ("on-call pay") at the employee's straight hourly rate for each day of the on-call assignment regardless of whether the employee is called to report for work and regardless of the number of hours worked in the workweek. On-call pay is not hours worked and does not count as time worked for overtime calculations. Nonexempt employees will be compensated overtime pay for all hours physically worked in excess of 40 hours in a workweek period.

During holidays that fall within a workweek period involving special projects, the time spent on events will be viewed as actual work hours for employees engaged in the related activities.

Eligible employees are entitled to receive time and one-half for time, typically offset by the occurrence of the holiday. And leave taken by the employee (compensatory leave, annual and sick) will reduce the amount of overtime pay, calculated based on a standard 40-hour work week/period.

*Special projects are defined as projects that are non-routine and not part of ongoing maintenance. These projects are typically carried out by county employees using county equipment, rather than by hiring a contractor. Such projects include preparing the road base for paving, constructing a holding pond, and building a park.

Disaster Emergency Pay

All essential county employees required to work during such times will be paid their normal pay rate and not the pay rate of the services they perform. Employees performing essential services will receive twice their normal hourly rate, which is categorized as emergency disaster pay for any hours worked within the 24 hours leading up to, and the 72 hours following the catastrophic event. Any emergency disaster assignment must be approved by the appropriate appointing authority, and tasks or responsibilities must be directly related to preparing for or recovering from the emergency disaster.

Employees who are not required to work during these periods will receive paid administrative leave for their regular scheduled hours until 72 hours after the catastrophic event or until normal operations resume. Failure to return to work after 72 hours, or when normal operations resume, will result in the employee being charged leave in the following order: compensatory, annual, sick, or leave without pay (LWOP), in that order, until they return to work.

After 72 hours following the catastrophic event, the following conditions will apply for non-exempt, and exempt (classified, unclassified and contract employees): they will receive 1.5 times their hourly rate for all hours worked over 40 hours. Leave and holiday hours taken will be included in the calculation of the 40 hours. Standard pay procedures shall resume as directed by the county administrator. However, emergency and disaster pay provisions shall not exceed 90 days following the declaration of a state of emergency.

Disaster Deployment Pay

For disaster deployment pay procedures, employees will receive 1.5 times their hourly rate for hours worked during deployment. Employees who are performing backfill or acting in response, temporarily replacing an employee responding to a disaster, emergency, or deployment, will be paid at their normal rate of pay.

Emergency Worker Meals

In the event of a disaster emergency, Santa Rosa County Board of County Commission will provide meals for emergency workers. Provision of meals, including beverages and meal supplies, for employees and volunteers engaged in eligible Emergency Work, including those at

EOC, is eligible provided the individuals are not receiving per diem and one of the following circumstances apply:

Meals are required based on this policy that meets the requirements of FEMA Public Assistance Chapter 6: Cost Eligibility;

- Conditions constitute a level of severity that requires employees to work abnormal, extended work hours without a reasonable amount of time to provide for their own meals; or
- Food or water is not reasonably available for employees to purchase.

FEMA only reimburses the cost of meals that are brought to the work location and purchased in a cost-effective and reasonable manner, such as bulk meals. FEMA does not reimburse costs related to group outings at restaurants or individual meals.

SECTION V. Santa Rosa County Pay Plan

The pay plan shall be made a part of this rule. These dollar figures in said form are recommendations only until approved or modified by the Board of County Commissioners.

CHAPTER IV. Performance-Based Pay System (Appendix A)

SECTION I. Purpose. To establish a performance-based pay system for classified employees to attract and retain a competent and well-trained workforce to provide excellent services to the citizens of Santa Rosa County.

SECTION II. Policy. This pay system provides for regular pay adjustments linked to the Performance Appraisal Management and Employee Development evaluation in the NEOGOV Perform System, subject to the review and approval of the County Administrator. Any related performance-based pay increases will be provided to regular full-time or part-time employees (including unclassified personnel) with at least one (1) year of service, and subject to funding approval by the Board of County Commissioners as part of the budget approval process.

The performance evaluation document (current, or as modified, improved, or replaced) will be the foundation of the performance-based pay system, and may be supplemented by additional information describing the employee's performance and accomplishments. The Department Director may recommend a pay increase based on the employee's performance evaluation, supplemented by any additional documentation, within the pay adjustment range shown below:

Level	General Definition
Exceptional	Consistently superior performer, work has tremendous and consistently positive impact and value to the department or the organization. Demonstrates high-

Exceeds Expectations	level capabilities and proactively takes on higher levels of responsibility. Consistently demonstrates high level of performance. Consistently works toward demonstrates high level of effort, effectiveness, and judgement with limited or no supervision.
Meets Expectations	Consistently demonstrates effective performance. Viewed as someone who gets the job done and effectively prioritizes work. Achieves valuable accomplishments in several critical areas of the job.
Improvement Needed	Demonstrates satisfactory performance inconsistently achieves some but not all goals and is knowledge and skills.
For <i>new employees</i> : this rating can be used when an employee is still coming up to speed with their job duties as appropriate, based on their tenure in the position.	
Consistently Below Expectations	Performance is inadequate and shows little or no improvement. Knowledge, skills, and abilities have not been demonstrated at appropriate levels*

* Performance Improvement Plan (PIP) Recommended

The percentage or dollar amount of performance-based pay adjustment will be determined by administration on an annual basis.

Employees at the maximum of the pay grade for their position, or who would exceed the maximum of the pay grade by some amount with the designated pay adjustment described above at their annual evaluation, will not be permitted to exceed the maximum of the assigned pay grade, and the base salary will be frozen.

The performance-based pay system is designed to provide an incentive for employees to improve and maintain a higher level of performance in order to receive pay increases and is subject to annual appropriation.

CHAPTER V. Attendance and Leave

SECTION I. Scope and Purpose

This policy sets forth the rules and regulations governing the attendance and leave of employees in Santa Rosa County.

SECTION II. Statement of Policy

A. It is the policy of the Human Resources Department where conflict exists between any rule and the Fair Labor Standards Act, hereafter referred to as FLSA, the FLSA shall prevail after April 15, 1985.

B. Unless specifically approved by the Human Resources Department:

1. Exempt employees are those defined by the FLSA. Work periods will be governed by the FLSA.

a. The workday for each full-time exempt employee is typically eight (8) hours, however; may vary depending on departmental requirements or agreements between the employer and employee, and the work week shall be 40 hours during a given seven (7) day period.

b. Overtime shall be compensated for by granting the employee compensatory leave or actual wages, as determined by the County Administrator, Constitutional Officer, or their designee. Application shall be in accordance with Section V. amended: 10/1/2022

2. Non-exempt employees are those defined by the FLSA. Work periods will be governed by the FLSA. amended: 10/01/2019

a. No county department shall operate on less than 40 hours work weeks, except as provided in Section VI, which authorizes specific holidays and other activities within the work week.

b. The workday for each full-time non-exempt employee is typically eight (8) hours, however, may vary depending on departmental requirements or agreements between the employer and employee, and the work week shall be 40 hours during a given seven (7) day period.

c. Overtime shall be compensated in accordance with the FLSA. Application of this policy shall be in accordance with Section V.

3. The workday for each part-time exempt and non-exempt employee is typically 4 hours, however, may vary depending on departmental requirement or agreements between the employer and employee. A workweek of no less than 20 hours during a given seven (7) day period is required for insurance eligibility. amended: 03/25/2008

C. For all classified positions, the Department Director or their designee shall arrange the employment and work program of the division in such a way that overtime is not required or permitted, except in emergency situations, or in the event of a special project. amended: 11/10/2004

Emergency situations are defined as:

1. Where an established post of duty must be covered 24 hours per day, and an employee is not available to cover that post on a given shift.
2. When danger to life, health, or wellbeing of the public, employees, inmates, or other persons could occur if an employee is not required to be on duty or where danger to property is imminent.
3. Other situations where the Department Director or their designee determines that the direct or indirect statutory responsibilities prescribed for the relevant department cannot be accomplished unless overtime is authorized.

A special project is defined as:

A county approved assignment requiring committed involvement in the area of site development where the authorization of overtime is pre-approved by the Department Director or their designee.

D. The granting of any leave of absence with or without pay must be approved by the Department Director or their designee. An employee who is granted leave of absence without pay shall be an employee of the County classified service while on such leave. Employee shall be returned to the same position or a different position of the same class and same work location upon termination of the approved leave of absence. The Department Director or their designee and the employee may agree, in writing, to other conditions and terms under which leave is to be granted.

E. Any leave of absence with or without pay must be authorized prior to the leave being taken.

1. When prior approval cannot be obtained by the employee due to emergencies, the Department Director or their designee shall take one of the following actions:

a. Grant the employee leave with pay, provided the employee has sufficient accrued leave credits to cover the absence.

b. Place the employee on leave without pay for the absence, or

c. If the absence is for three (3) consecutive workdays, consider the employee to have abandoned the position and resigned from Santa Rosa County. The Department Director or their designee shall immediately notify the Human Resources Department of such action, and the employee shall be notified by the Human Resources Department by certified mail. The employee shall have ten (10) days from the date of the Human Resources letter to file an appeal to this action. Amended: 10/1/2022

2. If an employee's request for leave of absence is disapproved and the employee takes unauthorized leave, the County Administrator, Constitutional Officer, or their designee shall place the employee on leave without pay and after an unauthorized leave of absence of three (3) consecutive workdays shall consider the employee to have abandoned the position and resigned from Santa Rosa County. amended: 05/31/2007

a. Requesting leave while not having a sufficient amount of leave time available at the time of leave being taken, will result in the employee being placed in a non-pay status and subject to disciplinary action. The exception would be leave without pay in conjunction with the Family and Medical Leave Act (FMLA). Amended: 5/31/2007

3. Leave of absence without pay for thirty days or less may be granted by the Department Director or their designee.

4. No leave shall be granted for the purpose of enabling a full-time employee to engage in other employment.

5. Employees granted leave under this section shall not be entitled to continue to accrue annual leave or sick leave credits.

6. An approved leave of absence without pay does not constitute a break in service, however, the total length of the employee's leave up to 180 calendar days will not affect the hire-in date. If the total length of the leave exceeds the 180 days, the entire leave of absence shall be deducted from the employee's total service.

7. Failure of an employee to return to duty upon expiration of their leave without pay shall be interpreted as a resignation.

SECTION III. Hours of Work

A. As provided in Section II, eight (8) hours shall constitute a workday, and 40 hours shall constitute a workweek for full-time employees, and typically, four (4) hours shall constitute a workday, and typically 20 hours shall constitute a workweek for part-time employees; however, may vary depending on departmental requirement or agreements between the employer and employee, and may be less than 20 hours. A workweek of no less than 20 hours during a given seven (7) day period is required for insurance eligibility. amended: 10/01/2019

1. A Department Director or their designee may allow certain employees to work less than eight (8) hour workdays; however, these employees will earn and accumulate leave prorated at a rate based on their hours of work. These employees shall be classified as part-time employees.

B. Employees filling established positions are expected to accomplish their work without overtime being required, except in emergency situations as defined in Section II.

C. Full-time employees shall be required to be present on their assigned job for the total hours in the established workday and workweek. Unless absence from duty is authorized by the appropriate authority in accordance with the provisions of this section.

D. Part-time employees shall be required to be present on their assigned jobs for the total number of hours for which they are being compensated, unless absence from duty is authorized by the appropriate authority in accordance with the provisions of this section.

E. Except for regular compensatory leave used during the workweek in which it is earned, all approved leave of absence with pay and holidays, including delayed holidays that are granted as special compensatory leave earned for working a holiday, shall be counted as time worked during a workweek. When actual hours worked plus such leave time used exceed the established workweek or work period, the employee shall be given regular compensatory time for those hours as authorized by the Department Director or their designee within the guidelines of the FLSA.

When actual hours worked minus such leave time used exceed the established work week or work period, the employee shall be given compensatory overtime for those hours as authorized by the Department Director or their designee within the guidelines of the FLSA.

SECTION IV. Record Keeping

A. Each Department Director or their designee is required to keep accurate record of all hours worked by each employee, as well as a complete and accurate record of all authorized leave which is approved in accordance with this rule. Any employee who earns or uses compensatory leave credits in an amount of time which is less than a full hour shall be credited or charged with such leave to one decimal place in accordance with Section VII, B, 3.

B. The ultimate responsibility for the accuracy and proper maintenance of all attendance and leave records rests with the Department Director or their designee.

C. Falsification of any attendance or leave record shall be cause for the dismissal of the employee or employees involved.

SECTION V. Overtime

Unless otherwise provided for herein, compensation will be made in accordance with the relevant provisions of the Fair Labor Standards Act (FLSA).

A. Non-exempt employees

1. Overtime is defined as work performed by an employee beyond the established workweek or work period within the requirements of the FLSA.

2. When an employee is required to attend training courses and seminars, attendance at

and travel to and from such training courses and seminars, shall be considered as time physically on duty.

Overtime shall be recognized by compensating the employee on an hour for hour basis. When hours are physically worked over the established work week or work period, when an employee works on a holiday, or when an employee is subject to a special project as defined in section II, compensation will be earned at a ratio of one- and one-half (1 ½) hours for each hour worked. Any employee that is required to be on standby duty shall be allowed to be compensated for overtime hours. "Standby duty" being defined by the FLSA. The County Administrator, Constitutional Officer, or their designee may give a defined amount of compensation to an employee that is required to be "On Call". "On-Call" as defined by the FLSA. The County Administrator, Constitutional Officer, or their designee may compensate an employee for overtime with actual wages or compensatory time. Amended: 8/25/2005

3. Cash payment for any type of unused compensatory leave credits will be made if the employee moves to another department outside of their current payroll office or ends employment in the classified service.

When an employee accrues any type of compensatory leave, the employee shall be required to use this leave prior to using annual leave credits. Leave shall be used in the following order, overtime compensatory hours, regular compensatory hours, annual leave.

B. Exempt Employees

1. Overtime is defined as work performed by an employee beyond the established workday or work period.

2. Cash payment for any type of unused compensatory leave credits will be made if the employee moves to another department outside of their current payroll office or ends employment in the classified service.

3. When an employee accrues any type of compensatory leave credits, the employee is required to use this leave in lieu of annual leave credits.

SECTION VI. Holidays and Other Authorized Activities

A. The following holidays are authorized for classified employees by the Human Resources Department: (rules applying to holidays will also apply to days of mourning)

1. Paid Holidays

New Year's Day	Labor Day
Martin Luther King Jr. Day	Veteran's Day
Presidents' Day	
Good Friday	Thanksgiving Day
Memorial Day	Friday after Thanksgiving
Independence Day	Christmas Eve

Christmas Day
Floating Holiday
Amended: 12/12/2024

New Year's Eve

Employees shall receive one floating holiday per calendar year in addition to regular paid holidays.

Floating holidays are available at the beginning of each calendar year for all employees and may not be carried over to the following calendar year. New employees shall receive a floating holiday upon hire.

The request to use a floating holiday must be scheduled and approved in advance by the employee's immediate supervisor.

Should an employee use a floating holiday more than once in a single calendar year, any available compensatory and annual leave hours will be subtracted from their accrued leave balance to cover the extra floating holiday used. The employee will be ineligible to use a floating holiday in the following year. If the employee does not have a sufficient leave balance, leave without pay will be applied.
Amended: 2/27/2025

2. Generally, if any of these holidays fall on Saturday, the preceding Friday will be observed as a holiday; or if any of these holidays fall on Sunday, the following Monday will be observed as a holiday. Shift workers will observe holidays on the actual day that the holiday occurs.
3. Due to unusual operational needs, the County Administrator, Constitutional Officer, or their designee may request that the Human Resources Department approve a variation in the holiday schedule for employees; however, the number of holidays approved shall not exceed the number of holidays authorized by this section.
4. Part-time employee's compensation shall be prorated at a rate based on their hours of work as per SECTION VI. D.

B. The County Administrator or their designee may designate any other workday as a holiday for employees of the classified service. Taxing Authorities may declare a day of mourning in observance of the death of a statesman in recognition of services rendered to the state or nation.

C. In municipalities in Santa Rosa County, when events are organized to celebrate some occasion in the locality, any employee who is desirous of attending such event may be granted annual or compensatory leave for that purpose but shall not be granted any other type of leave with pay. This rule shall also apply to any holiday which is not specifically named or designated a holiday by the Human Resources Department in accordance with this rule.

D. Each employee shall be given all holidays designated in Section VI, if the workload of the division is such that the employee's work can be discontinued.

1. If the holiday falls on the employee's **regular workday** and the employee **is** required to work the employee shall be compensated at a ratio of one- and one-half hours for each hour worked.
2. If the holiday falls on the employee's **regular workday** and the employee **is not** required to work, the employee shall be compensated at an hourly ratio of one for one for the hours the employee is normally scheduled to work (e.g., H8, H10, H12).
3. If the holiday falls on the employee's **regular day off** and the employee **is not** required to work, the employee shall be compensated at an hourly ratio of one for one, up to an eight (8) hour period.
4. If the holiday falls on the employee's **regular day off** and the employee **is** required to work the employees shall be compensated at a ratio of one-and-one half hours for each hour worked.
5. If an employee is scheduled to work a holiday and for any reason does not work that day, holiday compensation will be for only eight (8) hours.

Holidays occurring during a work week/period involving special project events shall be counted as actual time worked for employee's activity involved in such projects, the eligible employee is entitled to receive time and one-half for time normally offset by the occurrence of a holiday. Leave taken by the employee (compensatory leave, annual and sick) will reduce the amount of overtime pay based on the 40-hour work week/period. amended: 11/10/2004

E. Employees who are on approved leave with pay when holidays, allowed in this section, occur or by a state day of mourning is declared, shall not have such days charged against their accrued leave credits.

F. Employees in a non-pay status, or suspension during any portion of the last scheduled workday before a holiday, shall not be eligible to receive payment for such holiday. The exception would be an employee on Workers' Compensation. amended: 12/8/2016

G. Each Department Director or their designee may allow employees one (1) work break during the first half of their work shift and one (1) work break during the second half of their work shift, provided that:

1. An employee may not accumulate unused work breaks.
2. Work break time shall not be authorized for covering an employee's late arrival on duty or early departure from duty.

SECTION VII. Annual Leave

A. Method of earning annual leave

1. All full-time employees filling established positions shall earn annual leave as follows: Amended: 05/11/2021

Years of Service	Hours Accrued Per Pay Period
0 – 4 Years	4
5 – 9 Years	5
10 – 14 Years	6
15 – 19 Years	7
20+ Years	8

Full-time employees hired after April 24, 2003, who are filling established positions, shall accumulate a maximum of 360 hours per year. On December 31, all annual leave hours over 360 will transfer to sick leave. amended: 10/1/2022

Full-time employees who work a fixed percentage of the pay period shall earn annual leave credits proportionate to the time worked, except in the case of employees hired after October 1, 2022, shall be credited a one-time lump sum of 48 hours annual leave upon hiring. Annual leave credited at the time of hire may be used at any time, subject to the same approvals required for regularly accrued leave. Annual leave earned by full-time employees under Section VII(A)(1) shall not begin to be accrued until after the employee has worked for twelve (12) pay periods. For part-time employees who work a fixed percentage of the pay period, annual leave earned under Section VII(A)(1) shall not begin to be accrued until after the employee has worked a number of hours proportionate to that which would have earned 24 hours annual leave. Amended: 10/1/2022

2. Annual leave earned during any pay period shall be credited to the employee on the first day of the following pay period or, in case of separation, on the last day the employee is on the payroll. amended: 10/01/2019

3. During leaves of absence with pay, an employee shall continue to earn annual leave credits. However, annual leave credits shall not be earned when an employee is granted educational leave with pay or is granted terminal leave in conjunction with retirement or resignation from county government. amended: 10/8/2020

4. Each Department Director or their designee should make every effort to ensure that annual leave is used on a current yearly basis in order to provide employees with vacation and proper rest and relaxation. By following this practice, employees will not normally accrue annual leave in excess of that earned each year. amended: 1/27/2011

5. Under circumstances involving natural disasters or other emergencies, a Department Director or their designee may be required to cancel all approved leaves and to disapprove any requests for leave during an extended period of time which would prevent employees from using their accrued annual leave. When an emergency exists and the Department Director or their designee cancels approved leave, the Human Resources Department

and payroll office shall be notified immediately.

B. Use of earned annual leave

1. Annual leave should be used to provide periodic vacation; however, earned annual leave credits may be used for any other purpose when authorized by the Department Director or their designee.

2. Use of annual leave shall not be authorized prior to the time it is earned and credited to the employee and shall only be used with the approval of the Department Director or their designee within the department.

3. An employee who uses annual leave in an amount of time which is less than a full hour shall be charged with such leave based on one of the following formulas. amended:
11/10/2005

All hours worked shall be rounded to the nearest quarter of an hour, as follows:

<u>Minutes Worked</u> <u>Or Leave Used</u>	<u>Time Charged</u>	
	<u>Minutes</u>	<u>Hours</u>
0 – 7	00	.00
8 – 22	15	.25
23 – 37	30	.50
38 – 52	45	.75
53 – 60	60	1.00

Time worked shall be calculated from the following table. Normal workday minus time worked equals time used.

Example:	Normal work day	8:00 = total time	8.0
	Actual time worked	7:15 = earned time	7.25
	Time used	:45 = used time	.75

<u>Minutes Worked</u>	<u>Time Earned</u>	<u>Minutes Worked</u>	<u>Time Earned</u>
1 - 6	.1	31 - 36	.6
7 - 12	.2	37 - 42	.7
13 - 18	.3	43 - 48	.8
19 -24	.4	49 - 54	.9

4. Departments shall use the same method for all employees in their organization.

C. Transfer of earned annual leave

An employee who transfers from one department to another department in County shall be credited with unused annual leave by the receiving authority provided there is no break in service as defined in Rule 79-3.

D. Forfeiture of leave

An employee shall forfeit all rights of benefits under Section VII, if, an act or offense is committed while in the classified service and one of the following applies:

1. Has admitted to or is found guilty in a court of competent jurisdiction of committing, aiding, or abetting any embezzlement, theft, or bribery in connection with Santa Rosa County.
2. Is found guilty by a court of competent jurisdiction of having violated any state law prohibiting strikes by public employees.

E. Payment of earned annual leave

1. Employees shall be paid for unused annual leave upon separation from the County after six (6) months of satisfactory, continuous, and creditable service, in the last paycheck before the effective beginning date of participation in The Deferred Retirement Option Plan "DROP". Amended: 12/8/2016

- a. If employment is terminated as a result of any act referenced in Section VII, D, the employee shall not be paid for any unused annual leave credits even though the employee has six (6) months creditable service.

2. In case of death of an employee, payment of unused annual leave at the time of death shall be made to the employee's beneficiary, estate, or as provided by law. Such payment shall be made at the rate of pay at the time of death and by the department in which the employee was last employed.

3. Terminal leave payment due employees shall be computed as follows:

- a. Determine the current hourly rate in accordance with the employee's base salary.
 - b. Multiply the number of unused annual leave hours times hourly rate to determine the payment which shall be made. All such payments for accrued annual leave shall be made in a lump sum and the employee shall not be carried

on the department payroll beyond the last official day of employment.

4. Upon terminal separation or death of the employee, hired prior to April 24, 2003, payment for accrued annual leave will not exceed 500 hours. Payment for employees hired after April 24, 2003, shall not exceed 360 hours. If at the time an employee enters DROP, they do not have 500 hours of annual leave, or 360 for those hired after April 24, 2003, they may be paid for subsequent accumulated annual leave at the time of final separation, but the total number of hours for all payments shall not exceed 500 hours, or 360 for employees hired after April 24, 2003. Payment for annual leave associated with *Temporarily Terminated Status*, as defined in Section 15 of the special act, will not affect the 500-hour cap, or for employees with a 360 cap, at terminal separation. amended: 10/1/2022

5. Employees that have over 160 hours of annual leave and 240 hours of sick leave accrued at the start of each fiscal year may sell excess annual leave up to 80 hours if county budget funds are available. Payment of this benefit will be on the first paycheck in November of the respective year, at which time an employee's annual leave balance may not be depleted below 160 hours and their sick leave balance may not be depleted below 240 hours. Anyone wishing to participate in this benefit must submit a request to Human Resources between October 1st and 15th. The amount allowed will be based upon the number of participants and the funding available. A minimum of 20 hours and a maximum of 80 hours is allowed annually. This payout will not be calculated into the leave payout upon terminal separation or death of the employee. Amended: 2/27/2025

6. Payment shall be made at the employee's current rate of pay.

SECTION VIII. Sick Leave

A. Method of earning sick leave

1. All full-time employees filling established positions shall earn four (4) hours of sick leave credits per pay period. amended: 10/01/2019

Full-time employees hired after October 1, 2022, shall be credited a one-time lump sum 48 hours sick leave upon hiring. Sick leave credited under this section may be used at any time, subject to the same approvals required for regularly accrued leave. Sick leave earned by full-time employees under Section VII(A)(1) shall not begin to be accrued until after the employee has worked for twelve (12) pay periods. For part-time employees who work a fixed percentage of the pay period, sick leave earned under Section VIII (A)(2) shall not begin to be accrued until after the employee has worked a number of hours proportionate to that which would have earned 24 hours of sick leave. Adopted: 10/1/2022

2. Full-time and part-time employees who work a fixed percentage of the pay period shall earn leave credits for hours worked during the pay period proportionate to the time worked. amended: 10/01/2019

3. During leaves of absence with pay, an employee shall continue to earn sick leave

credits. However, sick leave credits shall not be earned when an employee is granted educational leave with pay or is granted terminal leave in conjunction with retirement or resignation from county government. amended: 10/8/2020

4. Sick leave earned during any pay period shall be credited to the employee on the first day of the following pay period, or in the case of separation, on the last day the employee is on the payroll. amended: 10/01/2019

B. Use of earned sick leave

1. Use of sick leave shall not be authorized prior to the time it is earned and credited to the employee and shall only be used with the approval of the Department Director or their designee within the department.

2. Sick leave shall be authorized only for the following purposes:

a. The employee's personal illness, injury or exposure to a contagious disease which would endanger others. Personal illness shall include disability caused or contributed to by pregnancy, miscarriage, abortion, childbirth, and recovery. Therefore, any sick leave credits used for these reasons shall be authorized only by the Department Director or their designee.

b. The employee's personal appointments with a doctor, dentist, or other recognized practitioner when it is not possible to arrange such appointment for off duty hours.

c. Illness or injury of a member of the employee's immediate family. Immediate family is defined as the spouse, grandparents, parents, brothers, sisters, children, and grandchildren of both the employee and the spouse. amended: 02/26/2004

d. Four (4) days of personal leave will be allowed annually to any employee; provided that these days shall be charged to accrued sick leave; provided further, that personal leave days shall be non-cumulative.

3. Notification of absence due to illness, injury or exposure to a contagious disease shall be given to the appropriate authority by the employee or the employee's representative as soon as possible on the first day of absence.

4. Upon request, an employee shall be allowed to use accrued sick leave credits as provided in this section.

a. After three (3) workdays of absence in any month, the Department Director or their designee may require a medical certification of the employee's illness before authorizing any additional use of sick leave credits by the employee.

b. After ten (10) consecutive days of absence, the employee shall submit to the Department Director or their designee a medical certificate from the attending physician before any additional use of sick leave credits can be authorized for the

employee. If the employee continues to be absent, the Department Director or designee shall require further medical certification for each thirty (30) consecutive days of absence, unless the Department Director or their designee has personal knowledge that the employee is hospitalized and unable to return to work. Such medical certification must state that the employee is unable to perform the regularly assigned duties if sick leave is to be authorized by the Department Director or their designee.

- c. If the medical certification furnished by the employee is not acceptable to the Human Resources Department, the employee may be required to submit to a medical examination which shall be paid for by the County. Based on the medical certification, the Human Resources Department shall:

- (1) If the employee is evaluated as fit for work, shall not approve further use of sick leave credits.

- (2) If the employee's health is evaluated as unfit for work, shall allow the employee to use accrued sick leave credits until such leave credits have been used or until the employee is able to return to work, whichever occurs first. If the employee is unable to return to work after all sick leave credits have been used, the employee shall be allowed to use any accrued compensatory or annual leave credits before being placed on leave without pay.

- d. An employee who, upon request by the Department Director or their designee, refuses to comply with these rules shall not be eligible to use accrued sick leave credits, and any absence from work shall be handled in accordance with Section II.

5. An employee who becomes ill while on approved annual leave, compensatory leave or maternity leave shall be allowed to use accrued sick leave credits to cover the period of illness. An employee who is on any other type of leave with or without pay shall not be allowed to use sick leave credits while on such leave.

6. An employee who uses sick leave in an amount of time less than a full hour shall be charged with such leave using the following formula. amended: 11/10/2005

All hours worked shall be rounded to the nearest quarter of an hour, as follows:

<u>Minutes Worked</u> <u>Or Leave Used</u>	<u>Time Charged</u>	
	<u>Minutes</u>	<u>Hours</u>
0 – 7	00	.00
8 – 22	15	.25
23 – 37	30	.50
38 – 52	45	.75
53 – 60	60	1.00

Time worked shall be calculated from the following table. Normal workday minus time worked equals time used.

Example: Normal work day 8:00 = total time 8.0
 Actual time worked 7:15 = earned time 7.3
 Time used :45 = used time .7

<u>Minutes Worked</u>	<u>Time Earned</u>	<u>Minutes Worked</u>	<u>Time Earned</u>
1 - 6	.1	31 - 36	.6
7 - 12	.2	37 - 42	.7
13 - 18	.3	43 - 48	.8
19 - 24	.4	49 - 54	.9
25 - 30	.5	55 - 60	1.0

7. Departments shall use the same method for all employees in their organization.

8. Such leave shall be used on a "first in - first out" basis, with sick leave accumulated prior to this rule being used first.

C. Transfer of unused sick leave

An employee who transfers from one position to another position in the County shall be credited with unused sick leave by the receiving authority.

D. Forfeiture of sick leave

An employee shall forfeit all right of benefits under Section VIII, if an act or offense is committed while in the classified service and one of the following applies:

1. Has admitted to or is found guilty in a court of competent jurisdiction of committing, aiding, or abetting any embezzlement, theft, or bribery in connection with Santa Rosa County, or
2. Is found guilty by a court of competent jurisdiction of having violated any state law prohibiting strikes by public employees.

E. Payment of unused sick leave

1. If employment is terminated as a result of any act defined in Section VIII, the employee shall not be paid for any unused sick leave credits even though the employee has six (6) months creditable service.

2. Employees shall be paid for unused sick leave credits when the employee has

completed six (6) months of satisfactory, continuous, and creditable service, and:

a. Separates from the County because of “normal” retirement with the effective date as determined by the State Retirement System, those hired prior to April 24, 2003, and begin participation in DROP, or death. If the employee is charged with misconduct and elects to retire or resign from the County in lieu of a hearing before the Civil Service Board on such misconduct charge, the employee shall NOT be entitled to any accrued sick leave payment. In the case of death, payment for accrued unused sick leave credits shall be made to the employee's beneficiary, estate or as otherwise provided by law, OR amended: 11/12/2015

b. The employee’s position is involuntarily transferred to another governmental agency. No payment shall be made for any sick leave recognized by the governmental agency to which the position is transferred. amended: 07/08/2004

3. An employee who is eligible for payment for unused sick leave credits shall be compensated at the rate of pay they were receiving at the time of eligibility for payment.

4. All such payments for unused sick leave credits shall be made in lump sum or two payments or according to the schedule below for DROP participants hired prior to April 24, 2003, with at least 400 hours of accumulated sick leave. The employee shall not be carried on the department payroll beyond the last official day of employment. amended: 11/12/2015

a. An employee hired prior to April 24, 2003, participating in DROP and has at least 400 hours of accumulated sick leave, shall have payment distributed according to the following table: amended: 11/12/2015

Months in DROP	Number of Payments	Portion for Each Payment
01-12	2	½, and balance
13-24	3	1/3, ½, and balance
25-36	4	¼, 1/3, ½, and balance
37-48	5	1/5, ¼, 1/3, ½, and balance
49-60	6	1/6, 1/5, ¼, 1/3, ½ and balance

b. Payments shall be as follows:

The first and all succeeding payments, other than the final payment, shall be in December, starting in the year the employee enters DROP. The final payment shall be in the month following the last date worked. (Example, last day worked = June 30, final payment = July.) If an employee enters and exits DROP and will not be employed in December of that year, then the remaining balance shall be paid in the month following the last date worked. At no time when a payment is to be made, other than the final one, shall the number of remaining days of sick leave be allowed to be less than 400d hours. If that would be the case, then either a partial payment or NO pay shall be made.

5. The payments made pursuant to this section shall not be considered as salary payments

and shall not be used in determining the average final compensation of the employee in any State/County administered retirement system.

6. Sick leave earned during any pay period shall be credited to the employee on the first day of the following pay period or, in the case of retirement or death, on the last day the employee is on the payroll. Employees, hired prior to April 24, 2003, will be paid for 100% of their leave balance at 75% of their rate of pay at the time of retirement. Employees, hired after April 24, 2003, will be paid 25% of their leave balance with 480 hours being the maximum amount allowed at the time of retirement or DROP termination. When separation is due to the death of the employee, the beneficiary will receive 100% of the sick leave balance at 100% of the rate of pay at the time of separation. amended: 10/01/2019

7. No payment for unused sick leave shall be made if the employee has been found guilty or has admitted to being guilty of any disqualifying act as referenced in Section VIII D.
corrected typo: 12/9/09

SECTION IX. Disability Leave

- A. Disability leave is available to an eligible employee who has been absent from work in his or her position due to the employee's own medical condition. Disability leave is unpaid.
- B. In order to be eligible for disability leave, an employee must: (1) be a full-time employee who has completed his or her probationary employment period; and (2) has provided to the County's Human Resources Department medical documentation from his or her health care provider establishing to the County's satisfaction that the employee is unable to perform the essential functions of his or her position with or without reasonable accommodation. Any eligible employee may request disability leave by contacting the County's Human Resources Department and making a written request.
- C. Upon receipt of an employee's written request, the County Administrator, Constitutional Officer, or their designee will make a determination as to whether the employee will be granted disability leave, and if so, the amount and duration of the leave to be provided.
- D. Typically, without notification from the County's Human Resources Department to the contrary, if an employee who is absent from work pursuant to this section is simultaneously absent from work due to a workers' compensation injury and/or his or her own Family and Medical Leave Act ("FMLA") qualifying serious health condition, then the employee's disability leave will run contemporaneously with his or her FMLA and/or workers' compensation leaves of absence.

County employees who are simultaneously on disability leave pursuant to this policy, as well as FMLA leave, must comply with any and all certification, recertification, and fitness for duty certification obligations requested by the County in accordance with FMLA and its applicable regulations. County employees who have either exhausted

their leave, the FMLA, or who are not eligible for FMLA leave, may be required to provide medical certifications, recertifications, and fitness for duty certifications necessary to establish the employee's (1) need for disability leave; (2) continued need for disability leave; and (3) ability to return to work in his or her former position.

The County's Disability Policy neither created nor provides any rights greater than those provided by the Americans with Disabilities Act ("ADA"), the FMLA or any other applicable federal or state law. Amended: 4/11/2013

SECTION X. Administrative Leave

A. Court

1. An employee who is summoned as a member of a jury panel shall be granted administrative leave with pay, and any jury fees shall be retained by the employee. The County shall not reimburse the employee for meals, lodging and travel expenses incurred while serving as a juror.

2. An employee subpoenaed as a witness, not involving personal litigation, shall be granted administrative leave with pay, and any witness fees shall be retained by the employee. The County shall not reimburse the employee for meals, lodging and travel expenses incurred while serving as a witness.

3. An employee subpoenaed in the line of duty to represent a county department as a witness or defendant shall not be granted administrative leave, and appearance in such cases shall be considered a part of the employee's job assignment. The employee shall be paid per diem for travel expenses and shall be required to turn over to the department any fees received from the court.

4. In no case shall administrative leave with pay be granted for court attendance when an employee is engaged in personal litigation; however, an employee may be granted annual leave in such cases with the approval of the County Administrator, Constitutional Officer, or their designee.

B. Elections

An employee who lives at such distance from assigned work location as to provide voting outside of working hours may be authorized a maximum of two (2) hours leave with pay for this purpose. Any other employee may be granted one (1) hour of leave with pay for the purpose of voting during normal working hours. An employee shall not be granted administrative leave to work at the polls during elections.

C. Meetings and conferences

In cases where it is deemed to be beneficial to the department an employee shall be granted leave with pay to attend such meetings or conferences as may contribute to the effectiveness of the individual's employment.

D. Examinations and interviews

An employee may be granted leave with pay for the purpose of taking or assisting in giving examinations, provided such examinations are pertinent to county employment or for the purpose of having interviews for promotional positions within the County.

E. Exceptional Circumstances

When an employee is the subject of an investigation, or where removal of an employee from the work environment is deemed appropriate by the County Administrator, Constitutional Officer or their designee, such employee may be placed on administrative leave with pay for a period not to exceed sixty calendar days.

F. Death in the immediate family

An employee, upon request, shall be granted three (3) days of administrative leave with pay on the death of any member of the employee's immediate and or stepfamily, including miscarriage and stillbirth infant loss. Immediate or stepfamily is defined as the spouse, parents, grandparents, brother, sister, children, and grandchildren of both the employee and the spouse.
amended: 04/11/2013

Each employee requesting administrative leave due to death in the immediate family shall submit a statement to their Department Director or their designee stating the name of the deceased and the relationship to the deceased.

G. Natural disasters

The County Administrator, Constitutional Officer, or their designee has the authority and responsibility to close department offices in an area affected by natural disasters, such as hurricanes, tornadoes and floods those employees who work in the affected area and are in offices that are closed on such occasions, shall be eligible for administrative leave if approved by the County Administrator, Constitutional Officer, or their designee. Amended: 10/1/2022

1. When a geographical area is affected by a natural disaster, the County Administrator shall determine whether the conditions that existed constituted an emergency which warranted the closing of the county office involved.
2. In cases determined to be warranted, all employees affected shall be granted administrative leave, any employee who is required to work to provide essential services shall be allowed to earn regular compensatory leave credits for such time worked.

H. Civil disorders or disasters

Employees who are members of a volunteer fire department, police auxiliary or reserve, emergency services agency, National Guard, Reserve, or other law enforcement type organization shall be granted administrative leave upon approval by the County Administrator,

Constitutional Officer, or their designee when such employees are called on as members of these organizations to perform duties in times of civil disturbances, and natural disasters. Such leave shall not exceed five (5) days on any one occasion.

I. Law Enforcement Officers maliciously or intentionally injured

Any Law Enforcement Officer who is maliciously or intentionally injured while acting in the course of employment will be placed on administrative leave with pay for any period not covered by Worker's Compensation.

J. Military Veterans referred for treatment

An employee who has incurred a (Military) service-connected disability and has been scheduled by the U.S. Department of Veterans Affairs (VA) to be examined or treated for the disability shall be granted administrative leave with pay. In no event shall such leave exceed six (6) calendar days a year.

K. Accrual and payment of administrative leave

If an employee does not use administrative leave as authorized in this section, the employee shall not accrue or be paid for such unused leave.

SECTION XI. Military Leave

- A. Permanent employees shall, upon presentation of a copy of their official orders, be granted leave with pay not to exceed three (3) days for the purpose of taking their physical examination for induction into the military service. Such leave shall not be deducted from the employee's sick or annual leave credits.
- B. Employees who are commissioned reserve officers or reserve enlisted personnel in the U.S. Military or naval service or members of the National Guard shall be granted leave without loss of pay for up to 240 working hours in a calendar year for reserve or guard training, upon presentation of a copy of the official orders for such training. Amended 12/8/2016
- C. An employee who is called to active military service shall be granted a leave of absence with full pay for the first thirty (30) days of such service, upon presentation of a copy of the official orders for such service. Amended 10/11/2012

SECTION XII. Educational leave with pay

- A. Enrollment in short courses, seminars, conferences or less than full time at a college, university or training academy which is required as part of the employee's job shall not be considered educational leave but shall be considered a part of the employee's work assignment.
- B. When an employee requests leave for the purpose of furthering education and when such

leave does not conform to the provisions of this section, such leave shall not be considered educational leave with pay. In these cases, the employee may be granted annual or compensatory leave at the discretion of the Department Director or their designee; or the employee shall be required to work extra hours in an amount equal to the time absent, including travel to and from classes.

- C. The granting of educational leave with pay to employees shall be in accordance with the departments approved program.
- D. Employees who are granted educational leave with pay shall not earn annual or sick leave credits or have such time counted toward completion of their probationary period. Such employees shall be granted any pay adjustments in the same amount and at the same time as are granted all other employees in the same class. If a special appointment of rate is approved for a geographic area of the state, an employee on educational leave with pay shall be eligible for a pay adjustment only if the special appointment rate applies to the geographic area in which the employment was located prior to being placed on educational leave with pay.

SECTION XIII. Family and Medical Leave

Eligible employees may take up to 12 workweeks of unpaid, job-protected leave under the Family and Medical Leave Act (“FMLA”) in a 12-month period for specified family and medical reasons. In addition, eligible employees may qualify for up to 26 workweeks of unpaid job-protected leave under the FMLA in certain situations related to a covered family member’s service in the Armed Forces. Amended: 12/8/2016

- A. The birth of the employee’s child and in order to care for the child (this also includes leave for a pregnant employee who becomes unable to work and leave for prenatal care).
- B. The placement of a child with the employee for adoption or foster care in order to care for the child.

Entitlement to leave for the birth/placement of a child, for adoption or foster care will expire one (1) year from the date of birth or placement. **NOTE:** If both parents work for the County, their combined leave entitlement for this reason is twelve (12) weeks.

- C. To care for the spouse, child, or parent of an employee, if such family member has a serious health condition; or
- D. The employee is unable to perform the functions of the position because of the employee’s own serious health condition.
- E. Because of any qualifying exigency (as defined by statute) arising out of the fact that a spouse, or a son, daughter, or parent of the employee is on active duty (or has been notified of an impending call or order to active duty) in the Armed Forces in support of a contingency operation.

- F. Servicemember Family Leave. Subject to Section 103 of the FMLA, an eligible employee who is the spouse, son, daughter, parent, or next of kin of a covered servicemember shall be entitled to a total of 26 workweeks of leave during a 12-month period to care for the servicemember. The leave described in this paragraph shall only be available during a single 12-month period.

In addition to the limitation on leave for the birth/placement of a child for adoption or foster care, if both husband and wife work for the County, their combined leave for servicemember family leave is limited to 26 workweeks during the single 12-month period.

When an employee requests family or medical leave for his or her own serious health condition, or for any of the reasons listed above, the employee must use all available and appropriate leave credits concurrent with FMLA until all leave credits are exhausted. After all available and appropriate leave is expired, then any remaining FMLA may be used as unpaid leave. Based on information from the employee, every effort will be made to designate qualified leave as FMLA prior to taking such leave. Amended: 1/27/2011

SECTION XIV. Domestic Violence Leave

Employees with three (3) or more months of service are entitled to domestic violence leave.

A. Eligible employees can take up to three (3) working days of leave in any 12-month period if the employee, or family or household member of the employee, is the victim of domestic violence. This leave may be with or without pay, at the discretion of the Department Director or their designee. This leave applies if the employee is:

1. Seeking an injunction for protection against domestic violence or an injunction for protection in cases of repeated violence or sexual violence;
2. Obtaining medical care or mental health counseling, or both, for the employee or family or household member to address physical or psychological injuries resulting from the act of domestic violence;
3. Obtaining the services from a victim-services organization, including, but not limited to, a domestic violence shelter or program or a rape crisis center as a result of a domestic violence act;
4. Making the employee's home secure from the perpetrator of the domestic violence or to seek new housing to escape the perpetrator; or
5. Seeking legal assistance in addressing issues arising from the domestic violence or attending and preparing for court-related proceedings arising from the domestic violence.

Except in cases of imminent danger to the health or safety of the employee, family or household member, employees seeking such leave must provide their Department Director or their designee

with appropriate advance notice of the leave along with sufficient documentation of the domestic violence act.

Before receiving such leave, employees must exhaust all annual leave and compensatory leave, if applicable, which is available to the employees.

SECTION XV. Leave of Absence Without Pay

A. Maternity leave

1. An employee who is pregnant shall be granted leave of absence without pay for maternity purposes as follows:

a. In the case of pregnancy, the period of maternity leave shall not be approved earlier than two (2) months before the anticipated date of birth, nor continue for more than two (2) months beyond the date of birth.

b. An employee who adopts a child may, upon written request, be granted a leave of absence.

2. While maternity leave is leave without pay, the County requires employees first use all available accrued leave credits during a FMLA qualifying leave event before being placed on LWOP. Amended: 09/27/2007

3. Prior to being placed on maternity leave of absence, any illness caused or contributed to by pregnancy, miscarriage, or abortion shall be treated as a temporary disability and the employee shall use accrued sick leave credits in accordance with section VIII.

B. Other leave without pay

1. An employee may, upon request, be granted leave without pay for a period not to exceed six (6) calendar months, provided the County Administrator, Constitutional Officer, or their designee deems such leave to be justified and not detrimental to the position of the department however, such leave authorized for educational purposes may be granted for a period of twelve calendar months.

2. In exceptional cases, such leave may be extended on approval of the County Administrator, Constitutional Officer, or their designee.

C. Limitations of leave without pay

1. An employee shall not earn annual or sick leave credits while on any type of leave without pay. Hours will be prorated when an employee is on leave without pay.

a. No employee on leave without pay, or suspension shall earn leave credits of any kind. Leave credits shall be prorated based on the number of hours worked in that

month. Amended: 12/8/2016

- b. Leave without pay will be granted only after all leave credits have been used.
Amended: 11/12/2015

2. An employee shall not be granted salary increases of any type while on leave of absence without pay. amended: 11/12/2015

If a performance-base pay increase is approved for County employees while the employee is on leave without pay, the increase will be granted upon return to duty in accordance with Section II. amended: 10/1/2022

3. An employee who has been placed on leave of absence without pay for any amount of time, with the exception of Workers' Compensation, and is therefore in a non-pay status during any portion of the last scheduled workday before a holiday, shall not be eligible to receive payment for such holiday or any other holiday occurring while the employee is on such leave.
04/16/2014

SECTION XVI. Illness and Injury in the Line of Duty

All full-time employees shall be entitled to a maximum of five (5) days of illness or injury in the line of duty leave each calendar year because of personal injury in the discharge of their duties or because of illness from a contagious or infectious disease contacted in their workplace. Such leave shall be noncumulative from year to year and when approved by the County Administrator or their designee shall be used before charging any absence to regular accrued sick leave, provided the following conditions are met. amended: 10/1/2022

A. The County Administrator or their designee shall be notified as soon as possible as the illness or injury occurs.

B. The employee shall file a written claim signed by the County Administrator or their designee for attachment to the payroll report for the periods in which the illness or injury occurred.

C. In the case of injury, a certificate from a licensed physician may be required and in the case of a claim relating to a contagious or infectious disease, the employee shall file a statement from a licensed physician certifying that beyond a reasonable doubt the contagious or infectious disease was contacted during the time the employee was actually engaged in the performance of their duties.

D. The County Administrator or their designee, after determining that the claim correctly states the facts and is valid, will approve the leave.

E. Any Workman's Compensation payment received by the employee while they are on compensable leave shall be deducted from the regular gross salary or the check received for

Workman's Compensation shall be endorsed to the county.

F. The employee shall file a certificate signed by a licensed physician designated by the County Administrator or their designee stating that the employee is unable to return to duty because of the injury or illness for which the initial leave was granted.

G. The employee shall agree to file a medical report at such intervals as the County Administrator or their designee may direct showing that they are unable to perform their duties.

Any person granted Illness and Injury leave who has used the maximum five (5) days may be granted additional leave by action of the County Administrator or their designee.

H. The employee shall not engage in any type of work for which they will receive compensation.

SECTION XVII. Transfer to the Private Sector

In the event that employees' jobs are transferred to the private sector under an agreement which guarantees that the transferring employees will carry forward all earned leave benefits to the private sector employer, then no payment shall be made to departing employees by the County.

SECTION XVIII. Definitions

ABANDONMENT OF POSITION - The desertion by an employee of the employee's position for three (3) consecutive workdays.

ADMINISTRATIVE LEAVE - Authorized leave of absence with pay not chargeable against an employee's accrued leave credits.

ANNUAL LEAVE - Authorized leave of absence with pay granted an employee for vacation or other personal purposes.

APPOINTMENT - The act of placing an employee in an established classified position.

COMPENSATORY LEAVE CREDITS - Leave credits granted to an employee for working beyond their regular work period.

- **Regular** Compensatory Credits are granted when the total hours physically worked are less than the regular work period.

- **Overtime** Compensatory Credits are granted when the total hours physically worked are more than the regular work period.

SPECIAL COMPENSATORY LEAVE CREDITS - are compensatory leave credits granted to an employee who is required to work on a holiday as provided in Section VI. Compensation is earned at a ratio of one- and one-half hours for each hour worked.

LEAVE OF ABSENCE WITHOUT PAY - Authorized leave of absence granted an employee

for which period the employee shall receive no pay.

PROBATIONARY PERIOD - A working test period required of an employee following appointment to any class in which the employee does not hold permanent status.

RESIGNATION - A voluntary act by an employee to terminate employment in Santa Rosa County.

RETIREMENT - As set out under the Florida Retirement System.

SICK LEAVE - Authorized leave of absence with pay granted an employee for personal illness or injury.

DEPARTMENT - The office of each director as designated by the County Administrator.
Amended: 10/1/2022

SECTION XIX. The effective date of this rule shall be July 1, 2002.